

TAB 23



Los Angeles Unified School District

700

333 South Beaudry Ave,
Los Angeles, CA 90017

Board of Education Report

File #: 011-23/24, **Version:** 1

Resolution of Intention to Dedicate an Easement, Associated with the Proposed Alley Vacation at Maxine Waters Employment Preparation Center (011-23/24) **[PUBLIC HEARING]**

EXHIBIT "A"**LEGAL DESCRIPTION****15' X 15' CORNER CUT AT CENTRAL AVENUE & 108TH**

THAT PORTION OF LOT 39, IN BLOCK 30 OF TRACT 6478, IN THE CITY OF LOS ANGELES, COUNTY OF LOS ANGELES, STATE OF CALIFORNIA, AS PER MAP RECORDED IN **BOOK 68, PAGES 93 TO 99 INCLUSIVE** OF MAPS, IN THE OFFICE OF THE COUNTY RECORDER OF SAID COUNTY; DESCRIBED AS FOLLOWS;

BEGINNING AT A POINT ON THE NORTHERLY LINE OF SAID LOT 39, DISTANT 17.00 FEET FROM THE NORTHEAST CORNER; THENCE SOUTHEASTERLY IN A DIRECT LINE TO A POINT WHICH IS 2.00 WESTERLY OF THE EAST LINE OF SAID LOT 39 AND 15.00 SOUTHERLY FROM THE NORTHERLY LINE OF SAID LOT 39; THENCE NORTHERLY PARALLEL TO THE EAST LINE OF SAID LOT 39; THENCE WESTERLY ALONG THE NORTH LINE 15.00 FEET TO THE POINT OF BEGINNING.

EXHIBIT B IS INCLUDED HEREIN AND MADE A PART HEREOF.

DESCRIPTION PREPARED BY:



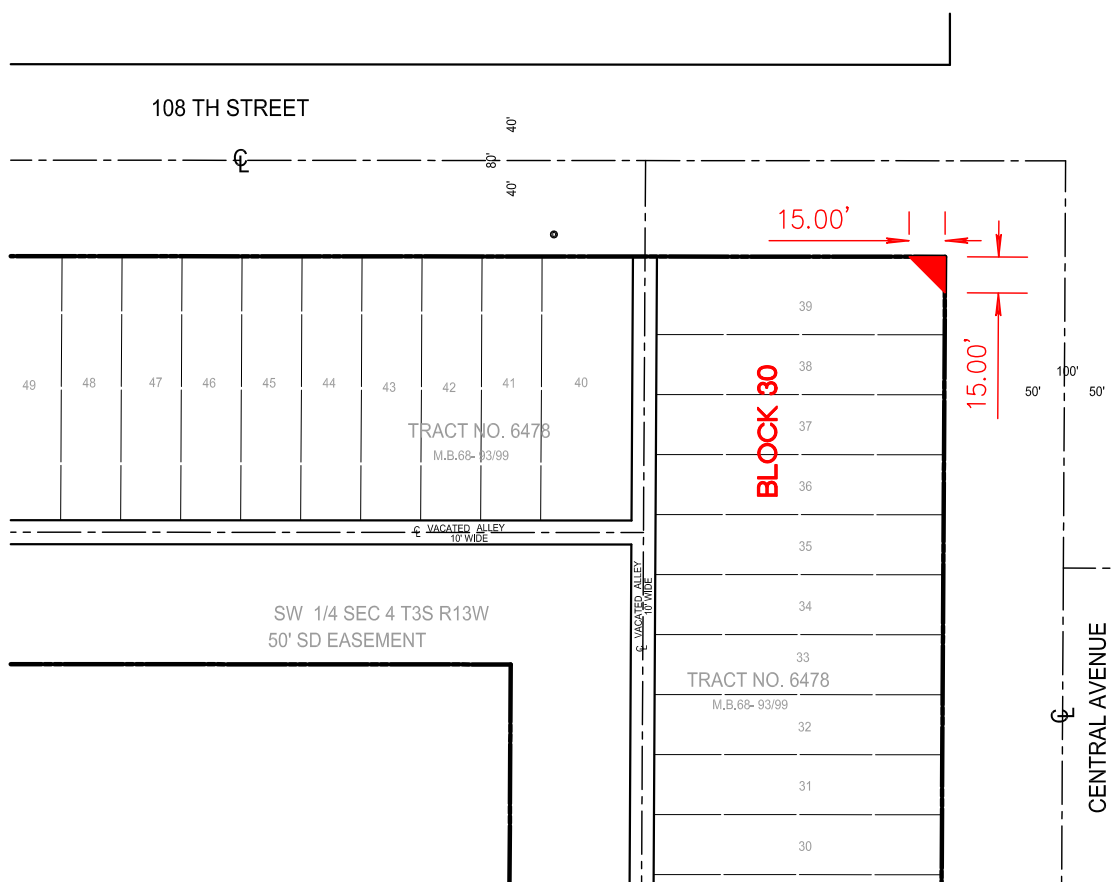
DATED: OCTOBER 31, 2022

GREGORY D. HINDSON, PROFESSIONAL LAND SURVEYOR PLS 5670

FOR AND ON BEHALF OF MOLLENHAUER GROUP



EXHIBIT "B"



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CIVIL ENGINEERING
SURVEYING+MAPPING
LAND DEVELOPMENT

EXHIBIT B
15'x15' CORNER CUT

PREPARED FOR:

LOS ANGELES
UNIFIED SCHOOL DISTRICT

DATE:	11/04/2022
JOB #	LA21315
DRAWN	MK
SCALE	1"=80'

SHEET 1 OF 1

EXHIBIT "C"

**NORTH-SOUTH ALLEY VACATION
LEGAL DESCRIPTION**

THAT PORTION OF THAT CERTAIN NORTH-SOUTH 10.00 FOOT ALLEY LYING WESTERLY OF AND ADJACENT TO LOTS 1 THROUGH 39 IN BLOCK 30, OF [TRACT NO. 6478](#), IN THE CITY OF LOS ANGELES, COUNTY OF LOS ANGELES, STATE OF CALIFORNIA, AS PER MAP RECORDED IN [BOOK 68 PAGES 93](#) TO 99 INCLUSIVE OF MAPS, IN THE OFFICE OF THE COUNTY RECORDER OF SAID COUNTY, BOUNDED WESTERLY BY SAID NORTH-SOUTH ALLEY; BOUNDED NORTHERLY BY THE WESTERLY PROLONGATION OF THE NORTHERLY LINE OF LOT 39 IN SAID BLOCK 30; AND BOUNDED SOUTHERLY BY THE NORTHEASTERLY LINE OF THE 45.00-FOOT STRIP OF LAND DESCRIBED IN PARCEL 616 IN THE LIS PENDENS RECORDED FEBRUARY 21, 1950 IN [BOOK 32339, PAGE 280](#) OF OFFICIAL RECORDS.

TOGETHER WITH THE WESTERLY 10.00 FEET OF SAID LOTS 1 THROUGH 5 OF BLOCK 30, TRACT 6478;

ALSO, TOGETHER WITH THOSE PORTIONS OF SAID LOTS 6 AND 7 OF SAID BLOCK 30 TRACT 6478, LYING WESTERLY OF THE FOLLOWING DESCRIBED LINE:

BEGINNING AT A POINT ON THE SOUTHERLY LINE OF SAID LOT 6, SAID POINT BEING DISTANT THEREON SOUTH 89°57'30" EAST 10.00 FEET FROM THE SOUTHWEST CORNER OF SAID LOT 6, THENCE NORTH 10°59'31" WEST 50.99 FEET TO THE NORTHWEST CORNER OF SAID LOT 7

EXCEPT FROM A PORTION THEREOF ALL OF THE MINERALS AND MINERAL ORES OF EVERY KIND AND CHARACTER NOW KNOWN TO EXIST OR HEREAFTER DISCOVERED UPON, WITHIN OR UNDERLYING SAID LAND OR THAT MAY BE PRODUCED THEREFROM INCLUDING, WITHOUT LIMITING THE GENERALITY OF THE FOREGOING, ALL PETROLEUM, OIL, NATURAL GAS AND OTHER HYDROCARBON SUBSTANCES AND PRODUCTS DERIVED THEREFROM, TOGETHER WITH THE EXCLUSIVE AND PERPETUAL RIGHT OF SAID GRANTOR, ITS SUCCESSORS AND ASSIGNS, OF INGRESS AND EGRESS BENEATH THE SURFACE OF SAID LAND TO EXPLORE FOR, EXTRACT, MINE AND REMOVE THE SAME, AND TO MAKE SUCH USE OF THE SAID LAND BENEATH THE SURFACE AS IS NECESSARY OR USEFUL IN CONNECTION THEREWITH, WHICH USE MAY INCLUDE LATERAL OR SLANT DRILLING, DIGGING, BORING OR SINKING OF WELLS, SHAFTS OR TUNNELS; WITHOUT, HOWEVER, THE RIGHT TO USE THE SURFACE OF SAID LAND IN THE EXERCISE OF ANY OF SAID RIGHTS AND TO DISTURB THE SURFACE OF SAID LAND OR ANY IMPROVEMENTS THEREON OR REMOVE OR IMPAIR THE LATERAL OR SUBJACENT SUPPORT OF SAID LAND OR ANY IMPROVEMENTS THEREON, AS RESERVED BY THE PACIFIC ELECTRIC LAND COMPANY, A CORPORATION, IN DEED RECORDED JUNE 21, 1956 AS [INSTRUMENT NO. 1385](#) IN BOOK 51520 PAGE 389, OFFICIAL RECORDS.

EXHIBIT "C" (continued)

EXCEPT FROM A PORTION THEREOF THE TITLE AND EXCLUSIVE RIGHT TO ALL OF THE MINERALS AND MINERAL ORES OF EVERY KIND AND CHARACTER NOW KNOWN TO EXIST OR HEREAFTER DISCOVERED UPON, WITHIN OR UNDERLYING SAID LAND OR THAT MAY BE PRODUCED THEREFROM, INCLUDING, WITHOUT LIMITING THE GENERALITY OF THE FOREGOING, ALL PETROLEUM, OIL, NATURAL GAS AND OTHER HYDROCARBON SUBSTANCES AND PRODUCTS DERIVED THEREFROM, TOGETHER WITH THE EXCLUSIVE AND PERPETUAL RIGHT OF INGRESS AND EGRESS BENEATH THE SURFACE OF SAID LAND TO EXPLORE FOR, EXTRACT, MINE AND REMOVE THE SAME, AND TO MAKE SUCH USE OF THE SAID LAND BENEATH THE SURFACE AS IS NECESSARY OR USEFUL IN CONNECTION THEREWITH, WHICH USE MAY INCLUDE LATERAL OR SLANT DRILLING, BORING, DIGGING OR SINKING OF WELLS, SHAFTS OR TUNNELS; PROVIDED, HOWEVER, THAT SAID GRANTOR, ITS SUCCESSORS AND ASSIGNS, SHALL NOT USE THE SURFACE OF SAID LAND IN THE EXERCISE OF ANY OF SAID RIGHTS, AND SHALL NOT DISTURB THE SURFACE OF SAID LAND OR ANY IMPROVEMENTS THEREON, AS RESERVED BY SOUTHERN PACIFIC COMPANY, A DELAWARE CORPORATION, IN GRANT DEED RECORDED JUNE 10, 1968 AS [INSTRUMENT NO. 305, OFFICIAL RECORDS](#).

EXHIBIT D IS INCLUDED HEREIN AND MADE A PART HEREOF.

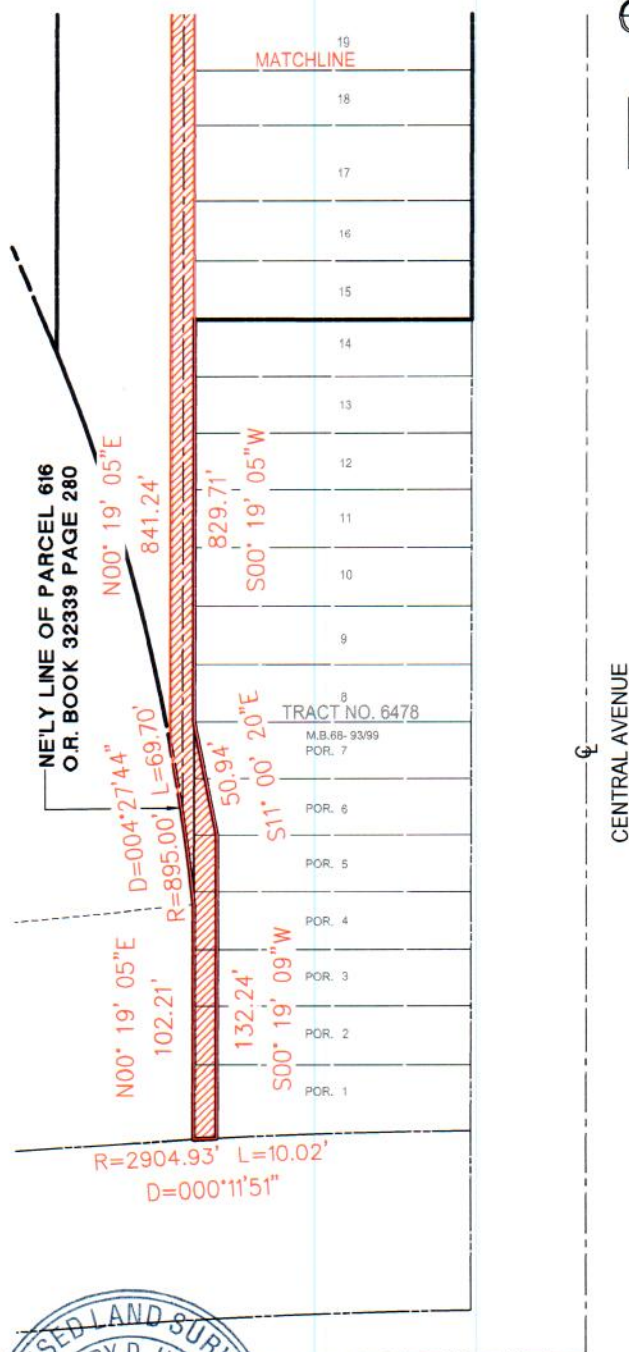
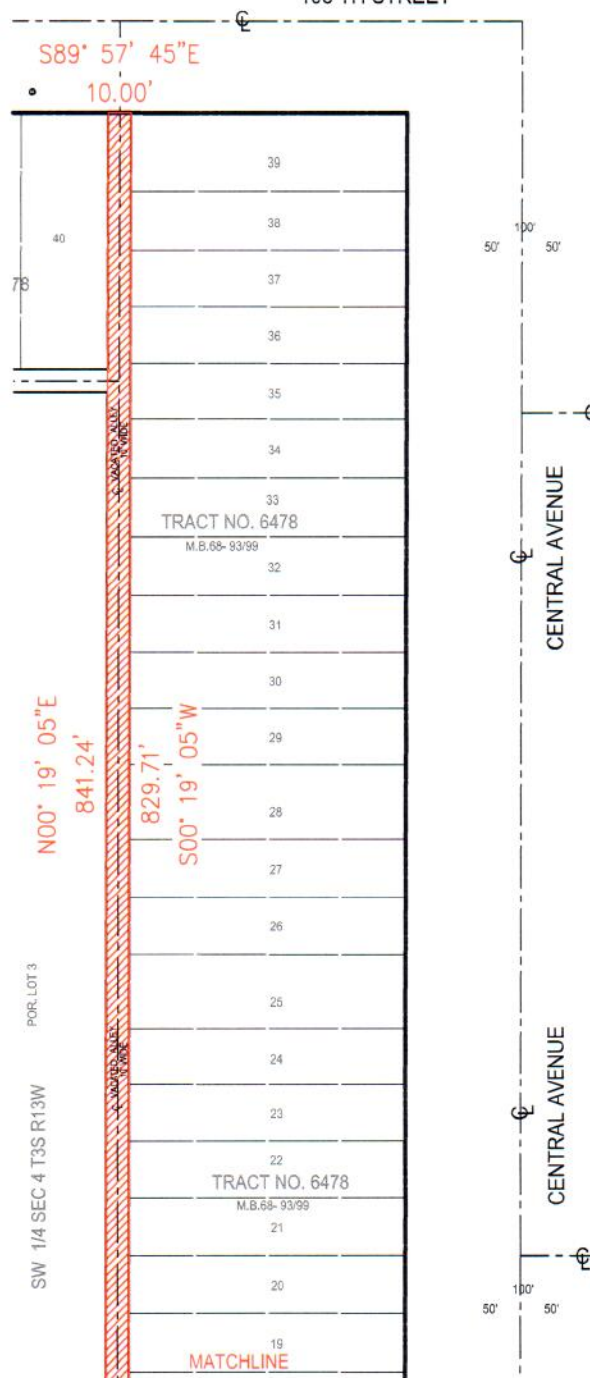
DESCRIPTION PREPARED BY:



DATED: MAY 30, 2023

GREGORY D. HINDSON, PROFESSIONAL LAND SURVEYOR PLS 5670
FOR AND ON BEHALF OF MOLLENHAUER GROUP

108 TH STREET



5/30/2023

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CIVIL ENGINEERING
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LAND DEVELOPMENT

NORTH SOUTH ALLEY VACATION

PREPARED FOR:

LOS ANGELES
UNIFIED SCHOOL DISTRICT

DATE:	11/04/2022
JOB #	LA21315
DRAWN	MK
SCALE	1"=150'

SHEET 1 OF 1

EXHIBIT E

NOTICE OF ADOPTION OF RESOLUTION OF INTENTION TO DEDICATE AN EASEMENT, ASSOCIATED WITH THE PROPOSED ALLEY VACATION AT MAXINE WATERS EMPLOYMENT PREPARATION CENTER

At the December 12, 2023, meeting of the Board of Education (“Board”) of the Los Angeles Unified School District (“Los Angeles Unified”), the following resolution was adopted by at least a two-thirds vote of all its members:

RESOLVED: That the Board, in pursuance of the provisions of Sections 17556 through 17561, inclusive, of the Education Code of the State of California, does hereby declare its intention to irrevocably offer to dedicate an easement at Maxine Waters Employment Preparation Center to the City of Los Angeles, a municipal corporation, (hereinafter called Grantee) over all that certain real property situated in the County of Los Angeles, State of California, legally described on Exhibit A and also shown on Exhibit B attached hereto.

The proposed easement dedication to the Grantee will help complete the requirements of the proposed street and alley vacation request. The easement dedication will be in the form of an Owner’s Dedication deed for the street easement, as legally described in Exhibit A and also shown on Exhibit B attached hereto.

The Grantee shall be responsible for damage caused intentionally or by any negligent act or omission of the respective grantee, its agent or employees while exercising the rights granted respectively herein.

BE IT FURTHER RESOLVED: That a public meeting of this Board be held in the Los Angeles Unified Board Room, 333 South Beaudry Avenue, 1st Floor, Los Angeles, 90017, the regular place of meeting of this Board, at or about 1:00 p.m., at the Regular Board Meeting to be scheduled for January 23, 2024, for a public hearing upon the question of such dedication.

BE IT FURTHER RESOLVED: That it is the intention of the Board at the time and place fixed for such public hearing or meeting, unless a petition protesting against the proposed dedication, signed by at least ten percent of the qualified electors of Los Angeles Unified, as shown by the affidavit of one of the petitioners, be filed with this Board, to order the dedication and adopt a resolution authorizing the execution and delivery of the dedication of an easement to City of Los Angeles for public use.

Notice of the adoption of this resolution and of the time and place of holding said meeting shall be given by posting copies of this resolution, signed by the members of this Board or a majority thereof, in three public places in this Los Angeles Unified of Los Angeles County, not less than ten (10) days before the date of said meeting and by publishing a copy of this resolution once not less than five days before the date of said meeting in a newspaper of general circulation published in the Los Angeles Unified of Los Angeles County.

EXHIBIT E

IN WITNESS of the passage of the foregoing Resolution as prescribed by law, we, the Members of said Board, present and voting thereon, have hereunto set our hands the 12th day of December 2023.

Ron's River
Tanya Greenfield

Justin Plummer
Mr. Mc

Jackie Goldberg
Members of the Board of Education of the
City of Los Angeles

ACKNOWLEDGMENT

STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

I, Michael A. McLean, Executive Officer, for the Board of Education of the City of Los Angeles, California, hereby certify the foregoing to be a full, true, and correct copy of Resolution of Intention to Dedicate an Easement at Maxine Waters Employment Preparation Center.

By: Michael A. McLean

Name: _____

Title: Executive Officer to the LAUSD
Board of Education

On January 11, 2024 before me,
Yolanda Villalva, Notary Public (insert name and title of the officer)
personally appeared _____

who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Signature _____

(Seal)

